

Feed Act, 1976

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Feed Act, 2033 (1976)

Royal Seal and Date of Publication

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Amending Acts

1. Judicial Administration Act, 2048 (1991) 2048.2.16
2. Some Nepal Acts Amendment Act, 2055 (1998) 2055.10.07
3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.07
4. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13
5. Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 (2018) 2075.11.19

Act No. 34 of the year 2033 (1976)

An Act Made to Maintain Purity in Feed Substances

Preamble: Whereas it is desirable to prevent undesirable adulteration in feed substances and to establish and maintain appropriate standards for feed substances so as to prevent the reduction or removal of any natural quality or utility present in feed substances,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the National Panchayat. 1. Short Title, Extent and Commencement: (1) This Act may be cited as the "Feed Act, 2033 (1976)".

(2) The extent of this Act shall be deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). throughout deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009).

(3) This Act shall come into force in such area and from such date as the Government of Nepal may, by notification in the Nepal Gazette, specify. 2. Definitions: Unless the subject or context otherwise requires, in this Act?

(a) "Feed substance" means any substance or mixture of substances consumed as food or drink by animals, birds, and fish.

(b) "Adulterated feed substance" means a feed substance in any of the following conditions:

(1) A feed substance in which the quantity of a principal ingredient has been reduced or any other substance has been mixed so as to fall below the standard determined pursuant to Section 10,

(2) A feed substance which is rotten, decomposed, or kept or prepared in a state of filth, dirt, or contamination so as to be harmful to animals, birds, and fish,

- (3) A feed substance made wholly or partly from any diseased or pathogenic animal, bird, or harmful plant,
- (4) A feed substance which falls below the minimum required quality or exceeds the maximum quality, where specified, as set out in any rule or order made or issued under this Act.
- (c) "Feed Inspector" means a Feed Inspector appointed or designated pursuant to Section 5.
- (d) "Prescribed" or "as prescribed" means prescribed or as prescribed in any rule or order made or issued under this Act. 3.

Prohibition on Production, Sale, Distribution, Export, Import, and Storage of Adulterated Feed Substance: No person shall produce, sell, distribute, export, import, or store any adulterated feed substance. 4. Prohibition on Sale or Distribution of Feed Substance by Deception or Fraud: No person shall sell or distribute any feed substance by deceiving or fraudulently representing it as another feed substance, or by representing any low-grade feed substance as a higher-grade feed substance. 5. Amended by Some Nepal Acts Amendment Act, 2055 (1998). Appointment and Powers of Feed Inspector: (1) For the purposes of this Act, amended by Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 (2018). the Government of Nepal and the Provincial Government shall amended by Some Nepal Acts Amendment Act, 2055 (1998). appoint or designate a Feed Inspector. (2) Save as otherwise provided in other sections of this Act, the functions, duties, and powers of the amended by Some Nepal Acts Amendment Act, 2055 (1998). Feed Inspector shall be as prescribed. 6. Power to Seize Feed Substance: (1) If any feed substance is suspected to be adulterated, the amended by Some Nepal Acts Amendment Act, 2055 (1998). Feed Inspector may seal such feed substance, entrust it to the owner thereof, obtain a receipt from him, and detain it. (2) If, after examination by a laboratory, the feed substance detained under Sub-section (1) is found to be adulterated, such feed substance may be confiscated by order of the amended by Some Nepal Acts Amendment Act, 2055 (1998). Feed Inspector, and if such feed substance is required to be destroyed, the cost of destruction thereof shall also be borne by the owner of the feed substance. 7. License Required: (1) Any person desiring to produce, sell, or distribute a prescribed feed substance shall obtain a license from the prescribed authority in the prescribed manner. (2) Notwithstanding anything contained in Sub-section (1), in the case of sealed feed substances, a retail seller who has obtained a guarantee certificate as prescribed from a licensed producer or wholesaler shall not be required to obtain a license under this Section. 8. Amended by Some Nepal Acts Amendment Act, 2072 (2015). Penalty: Any person who contravenes this Act or any rule or order made or issued under this Act shall be liable to a fine of twenty thousand rupees to fifty thousand rupees or imprisonment of one month to one year. 9.

Liability for Offence Committed by Firm or Incorporated Body: If any firm or incorporated body contravenes this Act or any rule or order made or issued under this Act, in the case of a firm, the owner or partner thereof, and in the case of an incorporated body, the chief administrative officer managing the affairs of such body, shall be liable to punishment for the purposes of Section 8. Provided that, in respect of acts done before such person became the owner, partner, or such administrative officer, or if it is proved that it was not possible for such person to have knowledge of such contravention, such person shall not be liable to such punishment. 10. Power to Prescribe Quality of Feed Substance: The Government of Nepal may, from time to time, by notification published in the Nepal Gazette, give orders regarding the quality or quantity of any substance in any feed substance, within which limits it shall be. 11. Examination of Feed Substance: Whether any feed substance is adulterated or not shall be examined at a prescribed laboratory, and a report in that regard shall be obtained from the concerned authority of that laboratory. 12. Feed Standards Determination Committee: The Government of Nepal may, from time to time, constitute a Feed Standards Determination Committee to

determine feed standards. 12A. Amended by Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 (2018). Power to Monitor and Inspect: (1) In respect of matters including whether the standards under this Act are maintained in the production, sale, distribution, export, import, or storage of feed substances, a Province or Local Level may monitor and inspect within its area. (2) If, in the course of monitoring and inspection pursuant to Sub-section (1), any person is found to have done any act contrary to this Act, the Feed Inspector deputed for monitoring or inspection by the Provincial Government or Local Level may exercise the powers under Sections 6 and 11 of this Act. Information thereof shall be given to the investigating officer. (3) If, when monitoring and inspecting pursuant to this Section, it is necessary to file a case against anyone under this Act, the Feed Inspector shall refer the matter to the officer authorized to investigate under this Act. 13. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act.